

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 29, 2022. The complaint is directed against FÁBRICA NACIONAL DE MONEDA Y TIMBRE - REAL CASA DE LA MONEDA with NIF Q2826004J (hereinafter, FNMT). The reasons for the complaint are as follows:

Complaint related to the use of cookies by the Fábrica Nacional de Moneda y Timbre on the website https://***URL.1/, without adequately informing or obtaining the consent of users. Specific mention is made of the use of Google Analytics cookies and the possibility that this implies international data transfer to the U.S. On these issues, the complainant contacted the DPO of the agency on 10/17/22, stating that they had not received a response.

Along with the complaint, the following documents were submitted:

- Copy of an email sent from the address ***EMAIL.1 to the address ***EMAIL.2 dated 10/17/2022. In this email, the complainant raises a complaint to FNMT regarding the installation of cookies on their website without obtaining consent as provided in Article 4(11) of the GDPR, and that two of these cookies are provided by Google Analytics, inquiring whether personal data is transferred to the U.S.
- Automatic report from dataskydd.net regarding the website ***URL.1 dated 11/29/2022, which indicates that Google Analytics cookies, such as _ga and _gid, are installed without any interaction with the website by the user. It also notes HTTP calls to the domain ***DOMINIO.1.

On January 17, 2023, the following evidence collected by this Agency was attached:

- Printout of "Cookie Notice" from the website ***URL.2, dated 01/17/2023.
- Automatic report from the Website Evidence Collector tool regarding the visit to the website ***URL.1 dated 01/17/2023, which indicates that Google Analytics cookies, such as _ga and _gid, are installed without any interaction with the website by the user. It also notes HTTP calls to the domain ***DOMINIO.1 and the transmission to this domain of parameters such as "sr," "cid" (value of the cookie _ga), "dl," "dt," among others.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to FNMT for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the period for availability, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 02/03/2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail, which was duly notified on 02/14/2023.

In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

On 03/02/2023, a written response was received by this Agency indicating that:

"1.- Report on the causes that have motivated the incident that originated the complaint.

On October 17, an email from A.A.A. entered the email of the Data Protection Delegate of FNMT-RCM (***EMAIL.2) with the following content:

From: "A.A.A." <***EMAIL.1>

To: ***EMAIL.2

Date: Monday, ***DATE.1 21:42

Subject: Cookies FNMT website

Dear Data Protection Delegate of FNMT:

I am writing to you regarding the cookies and other similar technologies used on the FNMT website (**URL.1).

Based on Article 4(11) of the GDPR, as well as its Recital 32, consent to the installation of the aforementioned cookies is not obtained in a "free, specific, and unequivocal" manner, since the option to "reject" the cookies or to consent or not to the use of each of them is not offered. In fact, the cookie banner informs that "if you continue browsing, we consider that you accept their use," which does not constitute a "clear affirmative act of the will" of the user to consent to that processing of personal data.

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28001 – Madrid

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3/26

On the other hand, I have been able to observe that at least two of the cookies used on the website are provided by Google Analytics, which raises the question of whether personal data is transferred to the United States, considering the recent revelations regarding Google Analytics.

Thank you very much in advance for considering my observations.

Best regards,

A.A.A.

While the inquiry from the interested party was recorded in our files and work has been ongoing regarding it, the following circumstances have arisen that have prevented a response within the timeframes established by the regulation:

- 1) The execution of several audit processes during the response period to the inquiry from the interested party, in which the Data Protection Officer has been repeatedly required.
- 2) Modification of the system for exercising rights over personal data by the interested parties, which has resulted in an exponential increase in requests without an increase in human and material resources to respond to them.
- 3) Internal restructuring and personnel changes within the entity that have hindered the continuity in processing inquiries and consequently caused delays.
- 4) Lack of personal resources to support the DPD-FNMT in its usual activities.

2.- Report, if applicable, on the measures adopted to adapt the privacy policy to Article 13 of the GDPR, implementation dates, and appropriate controls to verify its effectiveness.

Information regarding privacy is accessible on the FNMT-RCM website and is freely available to any interested party through the following link:

**URL.1

Appropriate controls to verify its effectiveness

Periodic updates are made to the privacy policy, especially regarding Article 13 of the GDPR. The Record of Processing Activities is published on the website and is reviewed once a year unless modifications in the processing require its review and update with a shorter periodicity.

Various internal and external (third-party) audits related to the processing of personal data are conducted annually or biannually, depending on their nature and requirements, and the type of associated certification.

3.- Report, if applicable, on the measures adopted to adapt the use of cookies to the provisions of Article 22.2 of Law 34/2002, of July 11, (LSSI), particularly regarding the information provided to users about the use of cookies and the purposes of data processing, as well as the method for obtaining, rejecting, or withdrawing consent for their use. Dates of implementation and controls carried out to verify their effectiveness are also requested.

Currently, a migration process of the FNMT-RCM website is underway. Among the changes to be made are the following planned actions:

- Incorporate the option to grant or reject cookies, providing consent only for those that the user

considers within the limits of the regulations in this regard.

- Address a change to Google Analytics 4 or another system compatible with Liferay that allows continued monitoring of the FNMT-RCM website within the limits of current legality.

Implementation dates

The aforementioned measures are expected to be implemented within the second quarter of the current year 2023.

Controls to verify their effectiveness

Periodic internal reviews to monitor compliance with various aspects of information privacy and data protection within the Entity. Conducting various internal and external (third-party) audits related to the processing of personal data with an annual or biannual frequency, depending on their nature and requirements, and the type of associated certification.

4.- The decision made regarding this complaint.

Carry out the actions indicated in the previous points.

Issue a response to the interested party, A.A.A., in the required terms.

5.- Any other matters deemed relevant.

No further contributions are made by this FNMT-RCM.

THIRD: On February 28, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On October 27, 2023, the Director of the Spanish Data Protection Agency agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 44 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was delivered by postal mail on November 8, 2023, as evidenced by the acknowledgment of receipt in the file.

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5/26

SIXTH: Once the deadline granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the FNMT.

In light of all the actions taken, the Spanish Agency for Data Protection considers the following proven facts in this procedure,

PROVEN FACTS

FIRST: A.A.A. (the complainant) on 10/14/2022 at 21:42 hours, sent an email to the address

***EMAIL.2, which is the address of the Data Protection Officer of the FNMT. Among other issues, the complainant raised the following:

“(…) On the other hand, I have observed that at least two of the cookies used on the website are provided by Google Analytics, so I wonder if personal data is transferred to the United States, considering the recent revelations about Google Analytics.”

SECOND: According to the evidence collected by this Agency on 01/17/2023, in the automatic report of the Website Evidence Collector tool regarding the visit to the website ***URL.1, without any interaction with the website by the user, Google Analytics cookies, such as _ga and _gid, are installed. Furthermore, there are http calls to the domain ***DOMINIO.1 and the transmission to this domain of parameters such as "sr", "cid" (value of the cookie _ga), "dl", "dt", among others; the following user identification numbers were established in the cookies “_ga” and “_gid” for subsequent transmission to Google:

Domain

Name

Value

Purpose

https://***URL.1/

_ga

XXXXXXXXXXXXXXXXXXXX

Google Analytics

https://***URL.1/

_gid

XXXXXXXXXXXXXXXXXXXX

Google Analytics

THIRD: According to the evidence collected by this Agency on 01/17/2023 in the automatic report of the Website Evidence Collector tool, FNMT has embedded the code of the Google Analytics tool on its website ***URL.1.

FOURTH: As stated in the response to question 4 (ii) of the document dated April 9, 2021 from GOOGLE LLC in the file, the owner of the website that has implemented the Google Analytics code on that website can choose from multiple retention periods ranging from 2 months to 50 months from the time the data was collected.

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6/26

FIFTH: According to the “Cookie Notice” of the FNMT (page 12 of the file), obtained in the actions carried out by this Agency on 01/17/2023, the Google Analytics cookies have the following expiration period in days:

- Cookie “_ga”: 730 days.

- Cookie “_gid”: 1 day.

SIXTH: On March 24 and 25, 2022, in the description of Google Analytics available at the urls ***URL.3 and ***URL.4, it was stated, among other information, that the cookies _ga and _gid were used to distinguish users and that the parameter “sr” referred to screen resolution.

SEVENTH: According to the “Cookie Notice” of the FNMT (page 7 of the file), obtained in the actions carried out by this Agency on 01/17/2023, the Google Analytics cookies are of the “Persistent” type and, according to “it is used to know where users navigate.” The data is limited to how users, through their devices, interact with the FNMT website (internal browsing data of the website).

EIGHTH: On October 27, 2021, the plenary session of the European Data Protection Committee decided on September 2, 2020, to create a working group to ensure a coherent approach among European data authorities to manage the 101 complaints regarding the data controller embedding code from Google or Facebook, through which personal data had been transferred to the United States without having a legal basis for it.

NINTH: In the document dated April 9, 2021, sent by GOOGLE LLC to the Austrian data protection authority, which shares it with the other authorities through the Working Group for the 101 complaints of NOYB in the context of the CJEU ruling Schrems II (“101 Taskforce”, hereinafter, working group TF101), the following information and statements are included (from its unofficial translation from English):

(...)

TENTH: In the model of the Adhesion Contract to GOOGLE services, titled “Terms of Data Processing of Google Ads” (***URL.5), in its version of September 21, 2022, it was stated that:

“Terms of Data Processing of Google Ads

Google and the counterparty accepting these Conditions (the “Client”), have entered into a contract for the provision of the Services of the data processor (with its specific amendments, the “Contract”)

These Conditions of data processing of Google Ads (the “Data Processing Conditions”) are subscribed by Google and the Client and complement the Contract.

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7/26

[...]

If you accept these Data Processing Terms on behalf of the Customer, you warrant that a) you have full legal authority for these Data Processing Terms to be binding on the Customer, b) you have read and understand these Data Processing Terms, and c) you accept them on behalf of the Customer. If you do not have the legal authority for these Data Processing Terms to be binding on the Customer, do not accept them.

Introduction

These Data Processing Terms reflect the agreement between the parties regarding the terms governing the processing of certain data in relation to European Data Protection Legislation and certain Non-European Data Protection Legislation.

Definitions and interpretation

[...]

“Google Entity” refers to Google LLC (formerly known as Google Inc.), Google Ireland Limited, or any other entity that, directly or indirectly, controls Google LLC, is controlled by Google LLC, or is under the same control as Google LLC.

“Google” refers to the Google Entity that is a party to the Agreement.

“European Data Protection Legislation” refers, as applicable, to a) the GDPR and/or b) the FDPA of Switzerland.

[...]

“SCCs” refers to the Customer’s Standard Contractual Clauses and/or the Standard Contractual Clauses (Processor to Processor, Google Exporter), as applicable.

[...]

“SCCs (Processor to Processor, Google Exporter)” refers to the terms included in ***URL.6.

[...]

“Sub-processors” refers to third parties authorized under these Data Processing Terms to have logical access to the Customer’s Personal Data and process it for the purpose of providing part of the Processor’s Services and any related technical assistance.

[...]

5. Data Processing

5.1 Roles and compliance; authorization.

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8/26

5.1.1 Responsibilities of the Data Processor and the Data Controller.

The parties acknowledge and agree to the following:

Appendix 1 describes the issue and details of the processing of the Customer’s Personal Data.

(b) Google is a processor of the Customer’s personal data;

(c) The Customer is a data controller or a processor, as applicable, of the Customer’s Personal Data; and

(d) Each party will fulfill its respective obligations under the Applicable Data Protection Legislation regarding the processing of the Customer’s Personal Data.

[...]

5.2 Customer Instructions. By entering into these Data Processing Terms, the Customer instructs Google to process the Customer’s Personal Data only in accordance with applicable law: a) to provide the Processor’s Services and any related technical assistance, b) as specified in more detail through the Customer’s use of the Processor’s Services (including the configuration and other features of the

Processor's Services) and any related technical assistance, c) as documented through the Agreement (including these Data Processing Terms), and d) as documented in more detail in other instructions provided in writing by the Customer and acknowledged by Google as constitutive instructions for the purposes of these Data Processing Terms (collectively, the "Instructions").

5.3 Compliance with Instructions by Google. Google will comply with the Instructions unless prohibited by Applicable Laws or such Applicable Laws require different processing.

[...]

10. Data Transfers

10.1 Data storage and processing facilities. In accordance with this section 10 (Data Transfers), Google may process the Customer's Personal Data in any country where Google or any of its Sub-processors has facilities.

10.2 Restricted European Transfers. The parties acknowledge that European Data Protection Legislation does not require SCCs or an Alternative Transfer Solution to process the Customer's Personal Data in an Adequate Country or to transfer it to such a country. If the Customer's Personal Data is transferred to any other country and such transfers are subject to European Data Protection Legislation ("Restricted European Transfers"), then:

If Google adopts an Alternative Transfer Solution for any Restricted European Transfer, Google will inform the Customer of the solution.

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28001 – Madrid

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9/26

relevant and will ensure that such Restricted European Transfers are carried out in accordance with such Solution and/or If Google has not adopted or informed the Customer that it will no longer adopt any Alternative Transfer Solution for any Restricted European Transfer, then:

If Google's address is in an Adequate Country:

The SCCs of the Data Processor will apply to the Data Processor, Google Exporter) with respect to all Restricted European Transfers from Google to the Sub-Processors and.

(B) Furthermore, if the Customer's address is not in an Adequate Country, the SCCs (Data Processor to Data Controller) will apply with respect to the Restricted European Transfers between Google and the Customer, regardless of whether the Customer is a controller and/or a processor or

(ii) If Google's address is not in an Adequate Country, the SCCs of the Data Controller will apply to the Data Processor and/or the SCCs (Data Processor to Data Processor), depending on whether the Customer is a data controller and/or a data processor, with respect to the Restricted European Transfers between the Customer and Google.

10.3 Complementary measures and information. Google will provide the Customer with relevant information regarding the Restricted European Transfers, including information on complementary measures to protect the Customer's Personal Data, as described in section 7.5.1 (Security Documentation Reviews), in Appendix 2 (Security Measures), and in other materials related to the nature of the Data Processor's Services and the processing of the Customer's Personal Data (for example, help center articles).

10.4 Termination. If the Customer concludes, based on the use it makes or intends to make of the Data Processor's Services, that the Alternative Transfer Solution and/or the SCCs, as applicable, do not provide adequate protection for the Customer's Personal Data, the Customer may immediately terminate the Agreement for convenience by providing written notice to Google.

10.5 Data center information. Information about the locations of Google's data centers is available at ***URL.7.

11. Sub-Processors.

11.1 Consent for engaging a Sub-Processor. The Customer specifically authorizes the engagement as Sub-Processors of the entities listed, as of the Effective Date of the Terms, at the URL specified in section 11.2 (Information about Sub-Processors). Furthermore, and without prejudice to what is

stipulated in section 11.4 (Opportunity to object to changes in Sub-Processors), the Customer generally authorizes the engagement of any other third party as a Sub-Processor ("New Sub-Processors").

[...]" (the underlining is ours).

ELEVENTH: On February 5, 2024, the URL ***URL.8 stated (unofficial translation, original in English): "[...]"

Requests from U.S. government agencies in cases involving national security

In investigations related to national security, the U.S. government may use a National Security Letter (NSL) or one of the authorizations granted under the Foreign Intelligence Surveillance Act (FISA) to compel Google to provide user information.

An NSL does not require judicial authorization and can only be used to compel us to provide limited subscriber information.

FISA orders and authorizations can be used to compel electronic surveillance and the disclosure of stored data, including the content of services such as Gmail, Drive, and Photos."

[...]" (unofficial translation, original in English)

TWELFTH: On February 5, 2024, the URL ***URL.9 stated (unofficial translation, original in English): "[...]"

Basics about personally identifiable information in Google contracts and policies.

In many contracts, terms of service, and policies of Google's advertising and measurement products, reference is made to "personally identifiable information" (PII).

This is a categorization of data different from what the General Data Protection Regulation (GDPR) considers "personal data."

Please note that, although Google may not identify certain data as personally identifiable information, the GDPR may do so, or such data may be considered personal information under the California Consumer Privacy Act (CCPA), and may be subject to those laws.

[...]"

Google considers "personally identifiable information" to be information that can be used alone to identify or locate a person accurately, or to contact them directly. Among other data, it includes the following:

- Email addresses
- Postal addresses

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28001 – Madrid

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11/26

- Phone numbers
- Exact locations (e.g., GPS coordinates, except in cases mentioned below)
- Full names (first name and last name) or usernames.

[...]"

Among others, Google does not consider the following data as personally identifiable information:

- Pseudonymous cookie IDs
- Pseudonymous advertising IDs
- IP addresses
- Other pseudonymous end-user identifiers

For example, if an IP address is sent with an ad request (something that happens with almost all ad requests as a consequence of Internet protocols), that submission will not violate any prohibition related to sending personally identifiable information to Google.

Please note that, although Google does not identify certain data as personally identifiable information, the GDPR, CCPA, or other privacy laws may consider them personal data or personal information.

[...]"

THIRTEENTH: On October 27, 2023, at the URL ***URL.10, there was evidence of FISA (Foreign Intelligence Surveillance Act) and NSL (National Security Letters) requests directed at GOOGLE

regarding user information.

LEGAL GROUNDS

I

Jurisdiction and Procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to the proceedings and the concurrent circumstances, this warning procedure is being conducted in accordance with the provisions of Article 64.3 of the LOPDGDD.

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12/26

II

Preliminary Issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the FNMT collects and processes, through the Google Analytics service, among others, the following personal data of individuals: unique user identifiers (_ga and _gid), the IP address, as well as other data associated with the browser and the browsing itself, among other processes.

FNMT carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR. The determination of FNMT as the data controller in question is detailed in Legal Ground III.

On its part, Article 44 of the GDPR regulates the transfer of personal data to third countries.

III

Transfers of Personal Data to Third Countries

Article 44 "Transfers of personal data to third countries or international organizations" of the GDPR establishes:

"Transfers of personal data that are subject to processing or will be processed after their transfer to a third country or international organization may only take place if, subject to the other provisions of this Regulation, the controller and the processor comply with the conditions laid down in this chapter, including those relating to further transfers of personal data from the third country or international organization to another third country or another international organization. All provisions of this chapter shall apply in order to ensure that the level of protection of natural persons guaranteed by this Regulation is not undermined."

Chapter V of the Regulation provides various instruments to ensure a level of protection that is substantially equivalent to that guaranteed in the European Union, in accordance with Article 44 of the Regulation:

- adequacy decisions (Article 45);
- appropriate safeguards (Article 46);

In the absence of an equivalent level of protection, it establishes exceptions for specific situations (Article 49).

1. On the processing of data and the responsibility of the processing.

In the document dated April 9, 2021, sent by Google LLC to the authority

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28001 – Madrid
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13/26

Austrian data protection authority, which it shared with the other authorities within the framework of the working group for the 101 complaints from NOYB, indicates that Google Analytics operates by including a block of Javascript code on the pages of a website. (...) for Google Analytics. The tracking operation sends data about the requested page through various means and sends this information to the Analytics server (...). The data is then processed more extensively and ends up in the reports of the website owner, in this case, the FNMT. The data that Google Analytics collects for the benefit of the website owner comes from the following sources:

i.
The user's HTTP request.
An HTTP request contains details such as the browser and the computer making the request, such as the hostname, browser type, 'referrer', and language.

ii.
Browser and system information.

iii.
First-party cookies.

Website administrators who integrate the Google Analytics service can send instructions to Google for processing the data collected through Google Analytics. The website administrator can apply different configurations, for example, regarding the data retention period. The Google Analytics function also allows website administrators to monitor and maintain the stability of their website, for example, keeping them informed of certain events such as a spike in audience or the fact that there is no traffic at all. Google Analytics also allows website administrators to measure and optimize the effectiveness of advertising campaigns conducted using other Google tools.

Therefore, Google Analytics collects the user's HTTP query and information about the user's browser and operating system, among other things. An HTTP request, for any page, contains details of the browser and device making the query, such as the domain name and browser information, such as its type, referrer, and language. Google Analytics stores and reads cookies in the user's browser to evaluate the user's session and other information about the query.

Regarding these data transfers, the contract related to the Google Analytics function ("Google Analytics Terms of Service") incorporates an appendix titled "Google Ads Data Processing Terms" (previously named "Google Ads Data Processing Conditions"). This appendix contains the Standard Contractual Clauses governing the transfer of personal data to the United States of America under the Google Analytics service. Additionally, Google has implemented additional legal, organizational, and technical measures to regulate data transfers under the Google Analytics service.

In accordance with point 10 of the "Google Ads Data Processing Terms," the data controller has agreed that Google may store and process personal data of the client (in this case, personal data of the complaining party) in any country where Google or any of its subprocessors operates.

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14/26

Data processing treatment maintains facilities. When this information is collected, it is transmitted to the Google Analytics servers.

Returning to the document sent by Google LLC dated April 9, 2021, in the last paragraph of the response to question 8, Google states that all data collected through Google Analytics is hosted in the United States. Therefore, the data collected on the website "****URL.1" through Google Analytics is transferred to the United States. Such data transmission requires a legal basis in accordance with Article 44 and subsequent articles of the GDPR.

All these elements show that, when deciding to implement the Google Analytics function on its website, FNMT, which manages the website "***URL.1", determined the means and purposes of the collection and processing of the data obtained as a result of the integration of Google Analytics into its website and must be considered the data controller in the sense of Article 4.7 of the GDPR.

2. On the qualification of the data subject to processing as personal data

It can be asserted that the data collected under the Google Analytics function and transferred to the United States of America constitutes personal data.

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific factors relating to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." It should be noted that online identifiers, such as IP addresses or information stored in cookies, can commonly be used to identify a user, especially when combined with other similar types of information. This is illustrated in Recital 30 of the GDPR, which states that the assignment of online identifiers such as IP addresses and cookie identifiers to natural persons or their devices can "leave traces that, in particular when combined with unique identifiers and other information received by the servers, can be used to create profiles of natural persons and identify them." In the particular case where the data controller claims not to have the ability to identify the user through the use (alone or combined with other data points) of such identifiers, it would be expected to disclose the specific means deployed to ensure the anonymity of the collected identifiers. Without such details, they cannot be considered anonymous.

Therefore, it is necessary to examine to what extent the implementation of Google Analytics on a website allows the website administrator and Google to identify a data subject (a visitor to the relevant website).

When the claimant visited the website ***URL.1, the following data (via JavaScript code) was transmitted from the claimant's browser to the servers of Google LLC:

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28001 – Madrid
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15/26

- Cookies _ga and _gid
- URL of the visited webpage (parameter dl) and title of the visited webpage (parameter dt)
- IP
- sr (screen resolution), among other parameters.
- Data about the browser and operating system:
- Unique identifier that identifies the website operator

It should be noted that the CJEU has already stated that IP addresses are personal data (see case C-597-19, paragraph 102 and C-582/14, paragraph 49). The IP address does not lose its nature as personal data simply because the means of identification reside with third parties. Furthermore, the case in question is very different, as the IP address can be combined with other elements, as will be described below.

Regarding unique identifiers, when a user visits the website ***URL.1, according to the Website Evidence Collector report dated January 17, 2023, the following user identification numbers were established in the cookies "_ga" and "_gid" and subsequently transmitted to Google LLC:

Domain

Name

Value

Purpose

https://***URL.1/

_ga

XXXXXXXXXXXXXXXXXXXX

Google Analytics

https://***URL.1/

_gid

XXXXXXXXXXXXXXXXXXXX

Google Analytics

According to the description of Google Analytics available at the URLs:

“***URL.3”

and “***URL.4”,

the cookies _ga and _gid are used to distinguish users and the parameter “sr” refers to screen resolution.

Visitor identifiers are unique identifiers intended to differentiate individuals (where such differentiation was not possible before), and make individuals identifiable. These identifiers can also be combined with other information, such as the address of the visited website, metadata relating to the browser and operating system, the time and data relating to the website visit, and the IP address. This combination of information further differentiates individuals.

For this reason, when several elements are combined, they can allow for the individual identification of visitors to the webpage of “***URL.1”, where Google Analytics is implemented. It is not necessary to know the name or the (physical) address of the visitor, as, according to Recital 26 of the GDPR, such qualification of individuals is sufficient for the visitor to be identifiable.

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16/26

If the opposite were decided, the scope of the right to data protection, guaranteed by Article 8 of the Charter of Fundamental Rights of the European Union, would be undermined, as it would allow companies to specifically select individuals along with personal information (for example, when visiting a specific website) while simultaneously denying them any right to protection against such singling out. Such a restrictive opinion that would undermine the level of protection for individuals is also not in line with the jurisprudence of the Court of Justice of the European Union (hereinafter, CJEU), which has repeatedly ruled that the scope of the GDPR must be understood very broadly (see, for example, judgment C-439/19, paragraph 61).

Google LLC claims that it has “no intention” of using online identifiers to identify the claimant (or other individuals), as stated in the last paragraph of the response to question 13 of the document dated April 9, 2021, and that it “does not do this.” It should be noted that Article 4, paragraph 1, of the GDPR does not require an entity to have a specific intention to identify a person. According to the clear wording of Article 4, paragraph 1, of the GDPR, the term “personal data” is fulfilled when an entity can (has the possibility to) do so.

Apart from this, even after a more restrictive interpretation of Article 4, paragraph 1, of the GDPR, which in any case would be contrary to the jurisdiction of the CJEU, the definition of “personal data” would be understood to apply to the exposed data. In the event that any visitor to the website ***URL.1 had logged into a Google account at the time of their visit, as can be seen in the statement from Google LLC dated April 9, 2021, the implementation of Google Analytics on a website allows Google to receive information that a specific user of the Google account has visited that website.

In the context of the use of Google Analytics, and depending on some settings in the Google user account configuration (see response to question 9 of the Google document dated April 9, 2021), it allows Google to receive information that a user logged into a Google account has visited a particular website. Therefore, personal data related to this account is collected. For all these reasons, the data in question must be considered personal data in the sense of Article 4.1 of the GDPR.

3. On the breach of the obligation to regulate the transfer of personal data outside the European Union In the present case, it must be verified whether the export of personal data to the United States of America occurred as the claimant indicates, in the terms established by Article 44 of the GDPR, and, in

the event that it occurred, whether the export was carried out with an adequate level of protection in accordance with an adequacy decision under Article 45 of the GDPR, or, failing that, whether any of the guarantees under Article 46 of the GDPR were adopted.

a.

Adequacy decisions

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/26

In its judgment in case C-311/18 ("Schrems II"), dated July 16, 2020, the CJEU invalidated the Implementing Decision (EU) 2016/1250 of the Commission, dated July 12, 2016, pursuant to Directive 95/46/EC of the European Parliament and of the Council, regarding the adequacy of the protection provided by the "EU-US Privacy Shield," without maintaining its effects on the date of the events subject to the claim.

In the absence of a valid adequacy decision with the U.S. at the time of the events, the data transfer in question could not be based on the provisions of Article 45.3 of the GDPR.

b.

Appropriate safeguards: Standard data protection clauses

Article 46, "Transfers subject to adequate safeguards," of the GDPR, establishes in its paragraph 1 that "In the absence of a decision pursuant to Article 45(3), the controller or processor may only transfer personal data to a third country or international organization if it has provided adequate safeguards and on condition that the data subjects have enforceable rights and effective legal remedies."

Article 46, paragraph 2, of the GDPR provides that "The adequate safeguards referred to in paragraph 1 may be provided, without requiring any express authorization from a supervisory authority, by:

(...)

c) standard data protection clauses adopted by the Commission in accordance with the examination procedure referred to in Article 93(2).

(...)."

The Google Standard Contractual Clauses for the transfer of personal data to the United States, in its version of September 21, 2022, titled "Google Ads & Measurement: Standard Contractual Clauses (Module 3: Processor-to-Processor)," which could be translated as: "Google Ads Data Processing Terms: Standard Contractual Clauses, Processor-to-Processor Standard Contractual Clauses" (hereinafter, SCC). These clauses comply with those published by the European Commission in Decision 2010/87/EU.

In this context, it is noteworthy that the Standard Contractual Clauses are a transfer instrument in the sense of Chapter V of the Regulation and were not challenged as such by the CJEU in its judgment of July 16, 2020 (C-311/18). However, the CJEU considered that the contractual nature of these clauses implied that they could not be binding on the authorities of third countries. In particular, the CJEU stated that: "...Therefore, while there are situations in which, depending on the legislation and practices in force in the third country in question, the recipient of such a transfer is in a position to ensure the necessary protection of the data solely on the basis of Standard Contractual Clauses for data protection, there are others in which the content of such standard clauses may not constitute a sufficient means to ensure, in practice, the effective protection of the personal data transferred to the third country in question. This is particularly the case when the legislation of that third country allows its public authorities to interfere with the rights of the data subjects to...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/26

"that refer to such data" (C-311/18, paragraph 126, emphasis added).

However, no further analysis of the legal situation in the United States is necessary, as the CJEU has already provided it in its aforementioned judgment. Indeed, the CJEU considered that regulatory surveillance programs such as Section 702 of FISA and E.O. 12333 in conjunction with PPD-28 do not meet the minimum requirements established by Union Law regarding the principle of proportionality, so that surveillance programs based on these provisions cannot be considered limited to what is strictly necessary (C-311/18, paragraph 184). Furthermore, the CJEU found that the legal framework in question did not confer on the parties concerned rights that could be enforced in court against U.S. authorities, from which it follows that these individuals do not have the right to effective judicial protection (C-311/18, paragraph 192).

The CJEU's analysis is relevant in the present matter, as Google LLC (as the importer of data to the U.S.) must be classified as a provider of electronic communications services within the meaning of subsection (b) of point 4 of Section 1881 of Title 50 of the United States Code and, therefore, is subject to surveillance by U.S. intelligence services in accordance with subsection (a) of Section 1881 of Title 50 of the United States Code ("FISA 702"). Therefore, Google LLC is obliged to provide personal data to the U.S. government when requested in accordance with subsection (a) of Section 1881 of Title 50 of the United States Code (FISA 702).

As can be seen in Google's Transparency Report, Google LLC is regularly subject to such access requests from U.S. intelligence services. The report can be consulted at:

***URL.10

The CJEU stated, on the one hand, that the EU-U.S. adequacy decision was invalid due to the access possibilities of U.S. intelligence services and, on the other hand, that the conclusion that the use of Standard Contractual Clauses cannot, by itself, guarantee a level of protection, as required by Article 44 of the GDPR, since the guarantees they offer are unmet when such access requests are made. In fact, the CJEU concluded the following:

"It follows that the standard data protection clauses adopted by the Commission based on Article 46(2)(c) of the GDPR are intended solely to provide contractual guarantees that apply uniformly in all third countries to the controllers and processors established in the European Union and, consequently, irrespective of the level of protection guaranteed in each third country. To the extent that these standard data protection clauses cannot, by their very nature, provide guarantees beyond a contractual obligation to ensure compliance with the level of protection required by Union Law, they may require, depending on the prevailing situation in a particular third country, the adoption of supplementary measures by the controller to ensure compliance with that level of protection" (C-311/18, paragraph 133).

(i)

General observations on supplementary measures

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/26

In its Recommendations 01/2020, dated June 18, 2021, (which can be consulted on the website ***URL.11, although the transcriptions included in this document refer to its translation into Spanish) the European Data Protection Board (EDPB) clarified that when the assessment of the legislation or current practices of the third country may affect the effectiveness of the adequate safeguards of the transfer instruments on which the exporter relies, in the context of its specific transfer, as is the case here following the assessment of the CJEU, the exporter must suspend the transfer or implement appropriate supplementary measures. The EDPB notes in this regard that "Any supplementary measure can only be considered effective in the sense of the CJEU ruling 'Schrems II' to the extent that it addresses the specific deficiencies identified in its assessment of the legal situation in the third country. If, ultimately, it cannot ensure a level of protection essentially equivalent, personal data must not be transferred." (see Recommendations 01/2020, point 75).

The measures to complement the standard data protection clauses can be classified into three categories: contractual, technical, or organizational (see Recommendations 01/2020, point 74).

Regarding contractual measures, the EDPB stated that: "In some situations, these measures can complement and reinforce the guarantees that the transfer instrument and the relevant law of the third country can provide when, considering the circumstances of the transfer, they do not meet all the necessary conditions to ensure a level of protection essentially equivalent to that guaranteed in the Union. Given the nature of contractual measures, which generally cannot bind the authorities of that third country when they are not part of the contract, these must be combined with other technical and organizational measures to provide the required level of data protection (...)" (see Recommendations 01/2020, point 99, emphasis added).

As for organizational measures, the EDPB highlighted that: "... Selecting and applying one or more of these measures will not necessarily and systematically ensure that your transfer complies with the essential equivalence standard required by Union law. Depending on the specific circumstances of the transfer and the assessment carried out on the law of the third country, organizational measures will be needed to complement contractual or technical measures, in order to ensure a level of protection of personal data essentially equivalent to that guaranteed in the Union" (see Recommendations 01/2020, point 128, emphasis added).

Regarding technical measures, the EDPB stated that "... These measures will be especially necessary when the legislation of that country imposes obligations on data importers that are contrary to the guarantees of Article 46 of the GDPR and may, in particular, affect the contractual guarantee of a level of protection essentially equivalent against the access of public authorities of that third country to such data" (see Recommendations 01/2020, point 77). It added that "The measures listed below aim to ensure that the access of public authorities of third countries to the transferred data does not...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/26

affect the effectiveness of the appropriate safeguards contained in the transfer instruments of Article 46 of the GDPR. These measures apply even if the access of public authorities complies with the law of the importing country, when such access goes beyond what is necessary and proportionate in a democratic society. These measures aim to prevent potential breaches of access by preventing authorities from identifying data subjects, inferring information about them, individualizing them in another context, or associating the transferred data with other datasets they may possess, which may contain, among other data, online identifiers provided by the devices, applications, tools, and protocols used by the data subjects in other contexts." (see Recommendations 01/2020, point 79, emphasis added).

(ii)

Complementary measures implemented by Google LLC

Google LLC, as the recipient of user data from its Google Analytics services, adopted contractual, organizational, and technical measures to complement the SCC. In the document dated April 9, 2021, sent by Google LLC to the Austrian data protection authority, which it shared with the other authorities within the framework of the TF101 Working Group, Google LLC described the measures taken in detail.

Considering the considerations of the CJEU and the EDPB, it must now be verified whether the complementary measures adopted by Google LLC were effective, meaning that they address the specific issue of the access possibilities of U.S. intelligence services.

Regarding the "legal and organizational measures" adopted, it should be noted that neither the notification of users, even if such notification is admissible, nor the publication of a transparency report or a "public policy on the handling of government requests" actually prevent or reduce the access possibilities of U.S. intelligence services. Furthermore, it is unclear how the "careful review of each request" by Google LLC regarding its admissibility is effective as a complementary measure, considering that, according to the CJEU, admissible (legal) requests from U.S. intelligence services do not comply with the requirements of European data protection legislation.

With respect to the "technical measures" adopted, it should be noted that it has not been clarified how

the described measures, such as the protection of communications between Google services, the protection of data in transit between data centers, the protection of communications between users and websites, or "on-site security," actually prevent or reduce the access possibilities of U.S. intelligence services based on the legal framework of the United States.

Regarding encryption technologies, such as in the case of "data at rest" in data centers, as specifically mentioned by Google LLC as a technical measure, it should be noted that Google LLC, as the data importer, has the obligation to grant access or deliver personal data imported under its control, including the cryptographic keys necessary for the data to be...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
21/26

intelligible (see Recommendations 01/2020, point 81). In other words: while Google LLC has the ability to access the data of individuals in a clear text, such a technical measure cannot be considered effective in the present case.

Regarding Google LLC's assertion that "to the extent that Google Analytics data for measurement transferred by website owners are personal data, they should be considered as pseudonymous," it should be noted that universal unique identifiers (UUIDs) do not fall within the definition of Article 4.5 of the GDPR. While pseudonymization can be a privacy-enhancing technique, unique identifiers have, as previously described, the specific intent of identifying users, not acting as a safeguard. Apart from this, it has also been previously described why the combination of unique identifiers with other elements (such as browser or device data and IP address) and the possibility of linking such information to a Google account in any case allows for an individual to be identified.

To the extent that Google LLC refers to an "optional technical measure" through an IP anonymization feature, it should be noted, first of all, that such a measure is, as its name indicates, optional and not applicable to all transfers. Furthermore, from Google's response, it is not clear whether this anonymization occurs before the transfer or if the full IP address is transmitted to the United States and only shortened after this transfer to the United States. Therefore, from a technical standpoint, there is potential access to the entire full IP address before it is shortened.

Thus, the supplementary measures adopted, as presented by Google, are not effective in that none of them address the specific issues in the present case, which means that none of them prevent the possibilities of access by U.S. intelligence services nor render such accesses ineffective.

c.

The exceptions provided in Chapter V of the Regulation

Article 49, "Exceptions for specific situations," of the GDPR states:

"1. In the absence of an adequacy decision pursuant to Article 45, paragraph 3, or of appropriate safeguards pursuant to Article 46, including binding corporate rules, a transfer or a set of transfers of personal data to a third country or international organization shall take place only if one of the following conditions is met:

a) the data subject has explicitly consented to the proposed transfer, after having been informed of the possible risks to him or her of such transfers due to the absence of an adequacy decision and appropriate safeguards;

b) the transfer is necessary for the performance of a contract between the data subject and the data controller or for the implementation of pre-contractual measures taken at the request of the data subject;

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
22/26

(...)"

In the present case, none of these assumptions are appreciated, considering that Recital 111 of the

GDPR requires that the international transfer of data must be “occasional and necessary in relation to a contract,” whereas in this case the transfers occur continuously and their necessity is not justified. Although it is true that FNMT does not decide where personal data is stored by Google LLC, from the moment it contracts the services of its Google Analytics tool, it is understood that it agrees with point 10 of the “Data Processing Terms of Google Ads,” whereby the data controller has agreed that Google may store and process personal data of the client (i.e., personal data of the claimant and any user visiting the website in question) in any country where Google or any of its sub-processors maintain facilities, including the U.S., as stated by Google LLC itself in the document dated April 9, 2021. Thus, the actions of Google LLC are confined to what is stipulated and, on behalf of FNMT, carrying out the processing of the personal data necessary for the proper provision of the service.

Consequently, regardless of the fact that the SCCs (Google Ads and Measurement: Standard Contractual Clauses (Module 3: Processor to Processor) in force at the time of the events considered Google Ireland as the data exporter in its Annex I, FNMT, as the data controller, assumes, along with the other conditions of the contracting of Google services, the agreements relating to data processing and the SCCs that allow the data to be transferred to Google LLC, based in the United States. Therefore, FNMT is responsible for the international transfer of data that occurs as a result of the service provided by Google LLC.

On July 10, 2023, the Commission approved the Implementing Decision (EU) 2023/1795 regarding the adequacy of the level of protection of personal data in the EU-U.S. Privacy Framework in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council, so that international transfers carried out after this date may be covered by the aforementioned Decision.

On the website [***URL.12](#) it can be verified that Google LLC has certified its adherence to the principles of the EU-U.S. Privacy Framework until September 13, 2024, due to the need to renew this certification annually. Therefore, currently, international data transfers to Google LLC in the U.S. are covered by the EU-U.S. Privacy Framework.

However, it must be concluded that, on the date when the events subject to the claim occurred, FNMT cannot invoke any of the tools provided for in Chapter V of the GDPR to justify the international transfers of personal data of visitors to its website, particularly unique identifiers, IP addresses, browser data, and metadata, to Google LLC in the United States, being fully applicable the doctrine established by the Court of Justice of the European Union in the judgment of the Schrems II case, which invalidated the decision on the “EU-U.S. Privacy Shield.”

IV

Typification and qualification of the infringement of Article 44 of the GDPR

Article 83.5.c) of the GDPR typifies as an infringement the violation of the following provisions:

“c) the transfers of personal data to a recipient in a third country or an international organization pursuant to Articles 44 to 49.”

For the purposes of the statute of limitations, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

I) The international transfer of personal data to a recipient located in a third country or to an international organization, when the guarantees, requirements, or exceptions established in Articles 44 to 49 of Regulation (EU) 2016/679 do not apply. (...)”

V

Warning

Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” in its third section provides that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures

aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure will have a maximum duration of six months from the date of the initiation agreement.

After this period, it will lapse, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article will apply in this case.”

However, Article 77 “Regime applicable to certain categories of...

24/26

"responsibles or data processors" of the LOPDGDD establishes a specific regime applicable in cases of infringements committed by public bodies. This article provides as follows:

“1. The regime established in this article shall apply to the processing for which the following are responsible or data processors:

(...)

d) Public bodies and entities of public law linked to or dependent on the Public Administrations.

(...)

2. When the responsible parties or data processors listed in paragraph 1 commit any of the infringements referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the responsible party or data processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that apply.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the Official State Gazette or the corresponding autonomous community's official publication.

4. The resolutions related to the measures and actions referred to in the previous paragraphs must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions related to the entities in paragraph 1 of this article, with an express indication of the identity of the responsible party or data processor that has committed the infringement. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions shall be governed by its specific regulations.”

This provision establishes that the procedures arising from infringements in the area of personal data protection committed by the categories of responsible parties or data processors listed in paragraph 1 shall be resolved by declaring the infringement.

It has been confirmed that the conduct carried out by the FNMT constitutes a violation of article 44 of the GDPR, and it is appropriate to declare that an infringement has been committed by the FNMT.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the NATIONAL MINT AND STAMP FACTORY - ROYAL MINT, with NIF Q2826004J, has infringed the provisions of article 44 of the GDPR, an infringement classified in Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to the NATIONAL MINT AND STAMP FACTORY - ROYAL

MINT.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of article 77.5 of the LOPDGDD.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also communicate to the Agency the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

26/26

documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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